

FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK**AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE***If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"***FORECLOSURE ACTION SURPLUS MONIES FORM****SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:****COUNTY OF QUEENS**WILMINGTON SAVINGS FUND SOCIETY, FSB, NOT
IN ITS INDIVIDUAL CAPACITY BUT SOLELY AS
CERTIFICATE TRUSTEE OF BOSCO CREDIT II
TRUST SERIES 2010-1

Plaintiff,

-against-

MARIA CHIMBAY, SEGUNDO CHIMBAY, NEW YORK STATE
DEPARTMENT OF TAXATION AND FINANCE, NEW YORK
CITY ENVIRONMENTAL CONTROL BOARD, JOHN DOE #1
(NAME REFUSED), JOHN DOE #2 (NAME REFUSED),

Defendant.

Index No. 724471/2021**MORTGAGED PROPERTY:**40-33 Forley Street,
Elmhurst, NY 11373COUNTY: QueensSBL #: 1502-40Sale Date: May 1, 2026**A. To be completed by the Referee**

- Final Judgment Amount per Judgment: \$ 380,753.89
- Adjusted Judgment Amount (Upset Price): \$ 476,714.00
(This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)
- Sale Price: \$ 100.00
(To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)
- Surplus Amount (enter \$0.00 if no surplus) \$ 0
***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees
earned in this matter: \$ _____Referee Name: Austin I. Idehen, Esq.Telephone: 718.558-4191Address: 89-31 161st Street, Suite 307, Jamaica, NY 11432Email: AMidehen@idehenlaw.comSignature/Date: [Signature] 5/1/26**If plaintiff is also the purchaser, complete both B. and C.***B. To be completed by Plaintiff's Rep.**Name: Jason Silver, Esq.Address: 111 Broadway, Suite 1205New York, NY 10006Telephone: (800) 484-4381Email: ftlrealprop@kelleykronenberg.comSignature/Date: [Signature] 5-1-26**C. To Be Completed by Purchaser**Name: Plaintiff

Address: _____

Telephone: _____

Email: _____

Signature/ Date: _____

Additional Copies of this Form can be found at <https://www.nycourts.gov/forms/foreclosure/>